

HOUSE No. 2339**The Commonwealth of Massachusetts**

PRESENTED BY:

Kenneth P. Sweezey*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to guidelines for MBTA communities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kenneth P. Sweezey</i>	<i>6th Plymouth</i>	<i>1/14/2025</i>
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>1/21/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>1/22/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/23/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>3/6/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/28/2025</i>
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>1/23/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/24/2025</i>
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>1/24/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/24/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/28/2025</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>1/28/2025</i>
<i>Alyson M. Sullivan-Almeida</i>	<i>7th Plymouth</i>	<i>2/6/2025</i>
<i>Justin Thurber</i>	<i>5th Bristol</i>	<i>2/27/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/2/2025</i>

HOUSE No. 2339

By Representative Sweezy of Duxbury, a petition (accompanied by bill, House, No. 2339) of Kenneth P. Sweezy and others relative to determining if MBTA communities are in compliance with certain community zoning ordinances. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to guidelines for MBTA communities.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to amend a deadline that has already since passed, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3A of chapter 40A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended in subsection (b) by adding at the end thereof the following:

3 No additional discretionary grant programs may take compliance with G.L. c 40A, §3A
4 into consideration when making grant awards.

5 SECTION 2. Said Section 3A is hereby further amended by striking out subsection (c)
6 and inserting in place thereof the following:

7 (c) Any new or revised guidelines promulgated by the department of housing and
8 community development determining if an MBTA community is in compliance with this section
9 shall not take effect earlier than December 31, 2028.

SECTION 3. This act shall take effect immediately upon passage.